

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 12
Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 07/22/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	20CV366852	Paul Brown et al. vs Everett Hunter et al.	MOTION TO SET ASIDE Defendant moves to set aside the default and default judgment on the ground that he was never served with the summons and complaint. A proof of service complying with the statutory requirements has been filed with the Court, dated August 19, 2020. A facially valid proof of service creates a rebuttable presumption that service was properly effected. (Evid. Code § 647; Floveyor Internat., Ltd. v. Superior Court (1997) 59 Cal. App 4th 879; Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1441-1442.) Defendant's declaration merely denies having been served. Such a bare denial, standing alone, is generally insufficient to overcome the presumption arising from a valid proof of service. Defendant presents no corroborating evidence demonstrating that service could not have occurred as reflected in the proof of service The Court finds that Defendant has failed to rebut the presumption of valid service. Accordingly, Defendant has not established that the default or default judgment is void for lack of personal jurisdiction. To the extent Defendant seeks discretionary relief under Code of Civil Procedure section 473, no showing of mistake, inadvertence, surprise, or excusable neglect has been made that would warrant relief. The Court notes Defendant did not file proof of service of this motion itself, reflecting noncompliance with applicable procedural requirements; while not jurisdictional, this further underscores the inadequacy of the present showing. Accordingly, the Defendant's Motion to Set Aside the Default Judgment is DENIED.

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LINE 2	24CV440947	Avasnsa IT Solutions vs IDC Technologies, Inc.	MOTION TO STRIKE ANSWER Plaintiff's Motion to Strike Defendant's Answer because Defendant is not currently represented by counsel. The court notes Defendant's Answer was filed by licensed counsel and was therefore properly filed. The subsequent withdrawal of counsel does not render the Answer invalid. A corporation, however, may appear only through licensed counsel and may not proceed in propria persona. Defendant IDC Technologies Inc. is granted 30 days leave to retain substitute counsel, who shall file a notice of appearance. Failure to do so may result in appropriate sanctions, including an order striking Defendant's Answer and entry of default, or other relief authorized by law. Accordingly, Plaintiff's Motion to Strike Answer is DENIED without PREJUDICE. Plaintiff's Motion for Sanctions is GRANTED in part and lowered to \$380.00. Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.
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